

Department of Workforce Development
ASD-Office of Procurement
201 E. Washington Ave., G400
P.O. Box 7946
Madison, WI 53707-7946

Governor Scott Walker
Secretary Raymond Allen

CONTRACT

by and between
Wisconsin Department of Workforce Development
and
University of Wisconsin - Whitewater

REQUEST FOR PROPOSAL/CONTRACT NO:
44500-016-ILF0004-00

COMMODITY OR SERVICE and DEFINITION:
Annual Outreach and Review Services

Contract Period:
July 1st, 2016 – June 30th, 2017

Renewal options:
Four, one-year optional renewals

DWD Program Administration:
Ben Squier – 608 267-3758
BenjaminW.Squier@DWD.Wisconsin.gov
Administrative Services Division - Procurement
201 E. Washington Ave., G400
P.O. Box 7946
Madison, WI 53707-7946

Contract Billing and Payment Terms
Invoiced Monthly

CONTRACTOR INFORMATION: (Please Complete)

Contractor / Provider Name: University of Wisconsin - Whitewater
Contractor / Provider Authorized Representative: Carl A. Fox, Director
Contractor / Provider Authorized Email: foxc@uww.edu
Contractor / Provider Address: 800 W. Main St., Whitewater, WI 53190
Contractor / Provider Mailing Address: _____
Contractor / Provider City, State, Zip: _____
Contractor / Provider Phone / Fax: (P) 262-472-5212 (F) 262-472-5214
Contractor / Provider Administrator: Carl A. Fox
Contractor / Provider Email: foxc@uww.edu
Contractor / Provider FEIN#: 391805963

The Department, Division of Workforce Development (DWD) specifically Division of Vocational Rehabilitation (DVR), and the Contractor acknowledge that they have read the Contract and the attached exhibits, addendums and requirements, understand them and agree to be bound by their terms and conditions. Further, the Department and the Contractor agree that the Contract and the exhibits and documents incorporated herein by reference are the complete and exclusive statement of the agreement between the parties relating to the subject matter of the Contract and supersede all proposals, letters of intent or prior agreements, oral or written, and all other communications and representations between the parties relating to the subject matter of the Contract. DWD reserves the right to reject or cancel agreements based on documents that have been altered.

This Agreement becomes null and void if the time between the earlier dated signature and the later dated signature exceeds sixty (60) days, unless waived by the Department.

Signatures

Carl A. Fox
Contractor Authorized Representative Signature

9-21-16
Date

Carl A. Fox, Director
Name, Title

[Signature]
DWD Authorized Representative Signature

9/21/16
Date

CHRISTOPHER E. HABERUP, ADMINISTRATOR
Name, Title

9/21/16
Date

CONTRACT

I. PARTIES TO THE CONTRACT

This agreement, hereinafter referred to as the "Contract", shall be between the Wisconsin Department of Workforce Development, hereinafter referred to as DWD, specifically Division of Vocational Rehabilitation, DVR, and the contractor, hereinafter referred to as University of Wisconsin – Whitewater (UW-W) listed on the signature pages, hereinafter referred to as "Contractor" and/or "Provider" for the procurement of Commodity or Services listed, according to the terms set forth in this Contract. The Contractor shall not have exclusive rights to provide all supplies or services covered under this contract during the term of the contract or any extension of the contract.

II. TERM OF CONTRACT

The Contract term is July 1, 2016 -- June 30, 2017. Plus optional 4 (1) year renewals.

III. EXECUTED CONTRACT TO CONSTITUTE ENTIRE AGREEMENT

DWD's Request for Proposal, the proposal response, written communications and this Contract constitute the entire agreement between the parties. The order of precedence is as follows:

- A. Laws, regulations and policies of the State and Federal government
- B. Official Wisconsin Department of Workforce Development Purchase Order and/or Contract (Standard Terms and Conditions attached to any of these procurement documents govern unless modified within the document)
- C. Written communications regarding contract terms agreed upon in writing
- D. Contractor's Proposal as submitted
- E. Addenda to the Request for Proposal
- F. Request for Proposal #44500-016-ILF0004-00

Any conflict or ambiguity in terms shall be governed by the highest listed document. Contractor composed and submitted contracts will not be accepted as a substitute for these terms and conditions.

Contractor agrees to renegotiate this contract or any part thereof, to address:

- Increased or decreased volume of services;
- Changes required by State and/or Federal law or regulations, or court action; or
- Reduction in the monies available affecting the substance of this Agreement.

Failure to agree to a renegotiated contract under the above-listed circumstances constitutes cause for DWD to unilaterally terminate this contract.

Revision of this Contract may be made by mutual agreement. The revision will be effective only when DWD submits an addendum or amendment to this agreement which is then signed by the authorized representatives of both parties, except in circumstances in which increased caseload or contract amount, where such increase in funds is for the same purpose as originally agreed upon, the agreement may be amended by a unilateral amendment made by DWD.

IV. SCOPE OF SERVICES

1. Outreach Plan

The Contractor will contact each 14 (c) Certificate Employer to outline the process and timeline for reaching out to employees. The DVR Contract Specialist will collaborate with the Contractor on an initial form letter that the Contractor will send to each subminimum wage worker and his/her family or guardian explaining the purpose and process DVR has been directed to complete per the WIOA federal regulations. The Contractor will share a copy of the form letter sent to the subminimum wage workers with the 14 (c) Certified Employer. Contract staff will be available by phone or email to explain the purpose, the process and timeline of services to sub-minimum wage workers, guardians and employers. The Contractor will collaborate with the 14 (c) Employer, the DVR Contract Specialist and WDA Director or Supervisor, the subminimum wage worker and their respective family/guardian and the long-term care funder if requested.

At the initial contact with the 14 (c) Certificate Employer, the Contractor and DVR Contract Specialist shall gather information related to local transportation resources to facilitate attendance at the meetings. The information will include cost and availability during the scheduled timeframe of the meetings.

2. Service Area Plan

The contractor serves the entire state of Wisconsin. The Contractor will provide the service as near to the home community as is practical. The Contractor will identify a point of contact who will work within one or more Workforce Development Area (WDA) regions to reach all the areas of the state and use the technology infrastructure available to the Contractor.

3. Scheduling Plan

(a) For a worker in year one of his/her employment with the 14 (c) Certified Employer, an initial meeting will be scheduled over the first 6 months of the project and again at the one-year milestone per worker. Upon completion of the first two meetings, annual meetings will be scheduled.

(b) For a worker past one-year milestone, one meeting will occur in the first 12 months with an annual meeting follow up thereafter.

This will require a minimum of 21 visits per week including scheduling, travel, documentation and a one-hour face to face meeting with the worker. Regional contract staff will coordinate travel time by mapping out visits efficiently. The Contractor will work with DVR to establish a schedule for the service to take place in each WDA. The DVR Contract Specialist and each WDA Director will be provided with a 10 business day notice prior to initial contact with each 14 (c) Certified Employer. The DVR Contract Specialist will provide information to the Contractor related to local DVR referral processes so that the Contractor can include that information during the individual session. DVR will monitor the Contractors' progress in statewide coverage and will request additional staff or modifications of the scheduling plan if

the targeted number of contacts is not met. An appropriate amendment will be developed and agreed upon for any staffing and budget needs.

Face to Face Meetings and Scheduling	60 minutes x 30 people per week	30 hours
Travel time	60 minutes per day x 5 days	5 hours
Documentation, Communication	50 minutes per day x 5 days	5 hours
TOTAL Hours per week to visit 30 people		40 hours
One Interviewer will visit approximately 910 people over one year	9 Interviewers will be required to meet with up to 8,200 workers	

4. Meeting Plan

Meetings will occur at the 14 (c) Certified Employer site or locations convenient for the subminimum wage worker and their families/guardians. Locations will include local technical college campuses, University of Wisconsin campuses, University of Wisconsin-Extension and other regional and local community-based organizations. Other locations can include libraries, community centers, Senior Centers, Aging and Disability Resource Center (ADRC) s, Job Centers and other community locations as needed. The contractor will meet outside of regular business hours as necessary. Confidentiality will be protected and accessibility will be a consideration for scheduled meetings.

Subminimum wage workers who will participate in the individual sessions will be asked to use their own resources to attend the required meetings. Guardians will in many cases be invited to attend and can voluntarily provide transportation. If transportation assistance is needed (a) the Contractor will identify workers who require arranged transportation, (b) provide a list of approved vendors, (c) upon request assist with arranging the transportation and (d) provide DVR with information to create payments to transportation providers. The information will be gathered individually during outreach attempts and will be combined in a request sent to DVR. The information must include name and contact information of transportation provider, name of worker, pick up and drop off location and times, date of service and cost. The contractor will provide the information to DVR via email or fax.

DVR will pay the contractor \$25.00 per person service fee for those consumers that require transportation coordination to cover the added cost of coordination.

5. Informational Components

The Contractor will prepare one-page summary documents to outline the service and federal requirements for the workers. The documents will be easy to read and translated by the contractor into languages as needed by the subminimum wage workers, staff, and families/guardians. The documents will provide information about DVR services, supported and customized employment, benefits counseling, resources in their communities for employment, and information about long term care. The Contractor may use and share publicly available materials and resources related to DVR services, supported and customized employment, benefits, counseling, resources in their communities for employment, and information about long term care. DVR will provide translated DVR documents for the Contractor to

use in the delivery of service. The DVR Contract Specialist, Communications staff and DVR Subject Matter Experts will review and approve any printed materials prior to release.

As required by WIOA-For employees working in 14 (c) Certified Employment Facilities with less than 15 employees:

In addition to the services described above, the contractor shall provide resources and materials about local opportunities, training and activities to participate and learn about self-advocacy, self-determination and peer-mentoring with the worker and or guardian related to self-determination and resources on upcoming opportunities to participate in self-determination trainings.

6. Individual Meeting Components

- The contractor shall provide career counseling discussion focused on prevocational skills gained to lead to integrated employment, opportunities for post-secondary education, supported, and customized employment experiences and their outcomes.
- The contractor will use a questionnaire for information gathering purposes.
- The contractor will provide the worker a review of resources available in the geographic area of the local, state and federal programs available for the person to access in order to be fully employed in competitive integrated employment, including such things as local supported employment/placement agencies, Job Centers, Benefits Counseling, DVR services and providers, training programs, eligible grants, self-directed employment services such as "Partners in Business" and other options offering a full array of services. The information can include examples of supported and customized employment that reflects people with similar disabilities working in integrated jobs. These can include testimonials from people with disabilities, family members and employers on the benefits of having a job in the community. Explanation and examples of people working in customized jobs will help provide a vision of the types of jobs people may find in the community that matches their skills and interests.
- The contractor will ask, within the counseling session, about self-advocacy, self-determination and peer mentoring training that the worker has been involved in.
- The discussion will be inclusive of the person with a disability to assist in independent decision-making. Information will be provided in a clear, concise, factual manner that addresses the barriers to employment to open the ideas of possibilities.

Conditions for the Individual Meeting:

Language/Translation Service: The contractor will ensure that the meeting information is translated as necessary based on subminimum wage worker need for foreign language translation or sign language. If a worker requires an accommodation such as translation services, the DVR agrees to cover all costs related to service. The contractor shall notify DVR of the need and the DVR Contract Specialist or other DVR staff will make arrangements for the accommodation and the service will be billed directly to DVR. Any costs due to cancellation by the contractor, will be borne by the contractor and DVR will reduce the next payment to the contractor accordingly.

Accommodations: If the subminimum wage worker requires accommodations (not including sign language) to participate in the individual meeting, the contractor will be responsible for arranging for the accommodation and billing DVR.

Involvement of Guardians: In each case where a guardian is identified an invitation to attend the meeting will be extended to the guardian. If the guardian is not available or present for the meeting, the worker can sign the document indicating that the service took place.

Provision for Partial Delivery of Service: DVR acknowledges that there may be circumstances where the Contractor cannot complete the service as described for reasons outside the control of the Contractor.

Upon missed meeting due to no show on part of 14 (c) worker: If the Contractor has completed and documented two additional outreach attempts to reschedule the meeting without success with at least one of the additional attempts being in another form of communication, the Contractor may invoice for the full amount.

Upon refusal to attend the meeting by worker or Guardian: If the Contractor has completed and documented two additional outreach attempts following the refusal with at least one of the additional attempts being in another form of communication and has collected the signature of the worker on the refusal document, the Contractor may invoice for the full amount.

Upon refusal to attend the meeting by worker or Guardian: If the Contractor has completed and documented two additional outreach attempts following the refusal with at least one of the additional attempts being in another form of communication and has not collected the signature of the worker on the refusal document, the Contractor may still invoice for the full amount.

7. Reporting Plan

The contractor shall collect self-reported data from each individual meeting and entered into a database developed by the contractor. Quarterly reports will be created onto an Excel spreadsheet for review by the DVR Contract Specialist. Information will be gathered using a tool created by the contractor and approved by the DVR Contract Specialist for consistent reporting on the following key areas:

- Demographic data on the subminimum wage worker
- Dates of meetings and who attended
- DVR history and dates
- Current prevocational skill development and goals
- Current and past community work experiences, paid jobs, OTJs, job shadows, supported and/or customized employment, Individual Placement and Support (IPS) experiences, etc.
- Participation in self-advocacy, self-determination and peer mentoring classes, trainings
- Post-secondary education certificates, credentials, classes
- Career interests and aptitudes provided by self-report

8. Documentation Provided to the Worker

The contractor shall provide the worker and DVR a summary document within 45 business days following completion of the individual meeting to retain as proof of participation and provision of the service. The documentation will include:

- a.) Name of Worker
- b.) Description of service or activity
- c.) Information and referral details provided to the participant worker

- c.) Name of Provider
- d.) Date of Service or Activity completion
- e.) Signature of participant/worker acknowledging completion and guardian (if present).
- f.) Date of signature
- g.) Signature of provider
- h.) Date of signature
- i.) Signature of DVR Representative
- j.) Date of signature of DVR Representative
- k.) Method of transmittal: hand delivered, faxed, emailed, US mail, etc.

If a worker (or their representative) after provision of informed choice, refuses to participate the following documentation must be provided within 15 business days of the refusal:

- a.) Name of Worker
- b.) Description of refusal and reason provided
- c.) Signature of worker acknowledging refusal and guardian (if present).
- d.) Date of signature of worker
- e.) If worker refuses to sign, the provider will work with the 14 (c) Certified Employer to gain signature or document attempts
- f.) Signature of provider
- g.) Date of signature of provider
- h.) Signature of DVR representative
- i.) Date of signature of DVR representative
- j.) Method of transmittal: hand-delivered, faxed, emailed, US mail, etc.

If a worker (or their representative) has not responded to multiple attempts to schedule a meeting:

- a.) Name of Worker
- b.) Description of outreach attempts
- e.) Signature of provider
- f.) Date of signature of provider
- g.) Signature of DVR representative
- h.) Date of signature of DVR representative
- i.) Method of transmittal: hand-delivered, faxed, emailed, us mail etc.

9. Security and Training Plan

The contractor shall use highly secure email and database systems. All of the contractors project staff hired shall be trained on confidentiality and records keeping protecting the privacy and confidentiality of the workers. Most documentation will be completed electronically with paper used only when necessary and to accommodate the worker and/or their family/guardian. The contractor shall meet the following standards:

- a. Encryption is required when name in combination with address, phone number, DOB, and/or SSN.
- b. The contractors' project staff shall follow strong encryption protection rules including use of password, locking laptops and cellphones and also change passwords every 60 days or more often as required and comply with all state mandated security protocols effecting subminimum wage worker records and communications.
- c. All Laptops shall have up-to-date virus protection software supported by the University IT Department.

- d. Every employee working on this program shall use a University issued laptop and remote protection.
- e. The information shall be stored on the contractor's secure database.
- f. Information shall be loaded into a database and reports shall be sent via encrypted email or other approved method to DVR via excels spreadsheet. DVR and the contractor may also determine that permissions can be given to dedicated staff at DVR to access the information directly. This can be discussed as a possible solution to immediate access to individual information by DVR when a formal referral is made.
- g. The contractor shall require all project staff in this program to complete the online IT security training used by the University. All staff and others who are connected to this program are required to complete DWD's Online Information Technology Security Awareness Training modules.
- h. The contractor shall comply with any new electronic security modules required to be completed as directed by DWD or DVR and any new staff hired will complete all modules of the Security Awareness Training prior to working with any subminimum wage workers.
- i. Subminimum wage worker related information cannot be sold or shared with a third party or used for a secondary purpose.

10. Staffing Plan

Staff will be selected based on their educational background and experience working with people with disabilities. The Project manager will have the following qualifications:

- Master's degree in Vocational Rehabilitation Counseling, Special Education, Psychology, Human Services, and other related degrees and two or more year's relevant experience.
- A Wisconsin Professional Counseling License, or equivalent approved by the DVR Contract Specialist.
- 4 or more years of experience working with individuals with disabilities, including supervisory and program management experience
- Knowledge of federal and state policies and laws related to individuals with disabilities
- Experience working with motivational interviewing, career counseling, assessment of subminimum wage worker needs and referral
- Knowledge of state agencies serving individuals with disabilities
- Experience and ability to manage projects, meet deadlines, supervise staff, and manage budget
- Excellent interpersonal skills and the ability to work with subminimum wage workers and stakeholders effectively
- Ability to manage multiple aspects of a project and meet deadlines
- Ability to manage and work with survey development tools, database management
- Ability to manage multiple priorities and deadlines effectively
- Ability to create, write, and support reports
- Excellent interpersonal and communication skills with a wide range of stake holders effectively
- Ability to work with a team and independently
- Timely completion of all necessary paperwork and reports
- Compliance with all state and/or federal regulations and confidentiality requirements
- The ability to develop and implement a comprehensive training plan for staff

- Proficient with technology software such as survey development software, databases, word-processing, and calendaring
- Must have valid WI driver's license or have independent transportation
- Must meet the contractors driver's requirements
- Must pass a background check

The contractor will employ eight FTE staff who will work throughout Wisconsin, based on regional needs and locations of subminimum wage workers, to meet with each subminimum wage worker and their family/guardian/support staff to provide career counseling and referral information. The qualifications of the staff to be hired to fill the positions both remotely and from the contractor's location will include:

- Masters or Bachelor's degree in Vocational Rehabilitation Counseling, Special Education, Psychology, Human Services, and other related degrees and two or more years relevant experience.
- Experience working with people with disabilities
- A background specifically in employment services will be preferred
- Experience in career and disability counseling and direct service delivery with people with disabilities and their families will also be preferred
- Ability to manage and work with survey development tools, database management
- Ability to manage multiple priorities and deadlines effectively
- Ability to create, write, and submit reports
- Excellent interpersonal and communication skills and ability to work with a wide range of stakeholders.
- Experience or training with motivational interviewing preferred
- Ability to work within a team and independently
- Complete all necessary paperwork and reports in a timely manner
- Comply with all state and/or federal regulations and confidentiality requirements
- Proficient with technology and software such as Outlook, Word Excel and other business standard software
- Comply with all university and contractor confidentiality and compliance regulations
- Must have valid WI driver's license or have independent transportation
- Must meet the contractors driver's requirements
- Must pass a criminal background check

All employees for this program will receive training in motivational interviewing and/or counseling techniques and will receive additional training regarding supported employment, customized employment, long-term care service system, DVR services, social security work incentives, and research on facility based vs. community based employment outcomes. The Project Manager will assure training is provided on these topics.

Ongoing supervision will be completed by the manager of the project. Staff will meet remotely every week as the project starts and quarterly in person to review the process, update resources, refresh motivational interviewing techniques, discuss outcomes, review database, create reports for DVR, and share experiences in meeting with the people with disabilities, their families/guardians and other staff involved in their work services.

The contractor will write a Quality Assurance plan to determine best practices in supporting this project and reviewed by DVR. It will include components such as record/data base reviews, randomly selected calls to participants for their feedback, opportunity to observe counseling or group meetings, written feedback from participants, and ultimately outcomes of who is choosing to be referred to DVR and begin their journey into integrated employment.

V. BILLING AND PAYMENT TERMS

Awarded contract will follow the costs outlined on the itemized price sheet in **Attachment A**. Contractor will invoice monthly for costs per completed consumer/worker. Contractor will receive a copy of the Purchase Order against this Contract; the Purchase Order number must be included on all invoices. Invoices shall be submitted to the email or fax number indicated on the purchase order. Invoices submitted are not to exceed the total amount of the contract, \$954,316.

Completed Cost per Consumer: \$116.38 based on an estimated 8,200 clients.

Please direct invoices to:

DWD -- DIV OF VOC REHAB
ATTN: DVR BUDGET ANALYST
PO BOX 7852
MADISON WI 53707-7852

or

1. FAX the invoices to (608) 327-6012 (preferred) OR
2. E-mail the invoices, to invoice@dwd.wisconsin.gov

1. **Withholding**

The payments to be withheld will be in an amount the Department determines necessary to cause the Contractor to correct its failures, or to protect the Department against potential losses or liabilities, and such amount will be withheld until the failure to provide the services or meet the Contract provision is cured or until the potential loss or liability ceases. The Department will withhold funds pursuant to this subsection only after the Department has given notice to withhold funds.

2. **Payment Adjustments**

The Parties shall attempt to negotiate the timing and payment schedule of any adjustments under this section.

VI. STATE AND FEDERAL RULES AND REGULATIONS

- A. **Applicable Laws**

The Contractor shall comply with all federal and state laws, rules and regulations and with Policies and Procedures relating to the provision of services under this Contract.

B. Debarment Certification

In conformance with federal law, the authorized Contractor representative must review, sign, and return the Certificate Regarding Debarment and Suspension form. (Submitted with proposal response)

C. Lobbying Certification

In conformance with federal law, the authorized Contractor representative must review, sign and return with this Contract either the Certificate Regarding Lobbying form or the Disclosure of Lobbying Activities. (Submitted with proposal response)

D. Non-Discrimination/Affirmative Action Requirements

The terms of this state contract require that the contractor submit an Affirmative Action Plan within fifteen (15) working days of returning the signed contract. Exceptions exist, and are noted in the Instructions for Vendors. An electronic version of the Instructions for Vendors and all forms required are available at: <http://vendornet.state.wi.us/vendornet/contract/contcom.asp> . If you require a printed copy of this information, please call (608) 266-3804 to have one mailed to you.

VII. DISPUTE RESOLUTION

If any dispute arises between DWD and Contractor under this contract, including DWD's finding of non-compliance and imposition of sanctions or remedial measures, the following process will be the exclusive administrative review.

- A. DWD's and Contractor's Contract Administrators will attempt to resolve the dispute.
- B. If the dispute cannot be resolved by the Contract Administrators, Contractor may ask for review by the Administrator of the Division in which the DWD's Contract Administrator is employed, or if the Contract Administrator is the Administrator of the Division, by the Deputy Secretary of the Department.
- C. If the dispute is still not resolved, Contractor may request a final review by the Secretary of the Department.

VIII. CANCELLATION AND TERMINATION

A. Termination for Cause

The State may terminate this Contract after providing the Contractor with thirty (30) calendar days written notice of the Contractor's right to cure a failure of the Contractor to perform under the terms of this Contract.

The Contractor may terminate this Contract after providing the State one hundred and twenty (120) calendar days' notice of the State's right to cure a failure of the State to perform under the terms of this Contract.

Upon the termination of this Contract for any reason, or upon Contract expiration, each party shall be released from all obligations to the other party arising after the date of termination or expiration, except for those that by their terms survive such termination or expiration.

B. Termination for Convenience

Either party may terminate this Contract at any time, without cause, by providing a written notice; the State by providing at least thirty (30) calendar days' notice to the Contractor, and the Contractor providing

at least one hundred and twenty (120) calendar days' notice to the State in advance of the intended date of termination.

In the event of termination for convenience, the Contractor shall be entitled to receive compensation for any fees owed under the Contract. The Contractor shall also be compensated for partially completed Services. In this event, compensation for such partially completed Services shall be no more than the percentage of completion of the Services requested, at the sole discretion of the State, multiplied by the corresponding payment for completion of such Services as set forth in the Contract. Alternatively, at the sole discretion of the State, the Contractor may be compensated for the actual Service hours provided. The State shall be entitled to a refund for goods or services paid for but not received or implemented, such refund to be paid within 30 days of written notice to the Contractor requesting the refund.

C. Contract Cancellation

The State reserves the right to cancel this Contract in whole or in part without penalty if the Contractor:

- Breaches or defaults an obligation under the Contract as follows:
 - Fails to perform any material obligation required under the Contract
 - Files a petition in bankruptcy, becomes insolvent, or otherwise takes action to dissolve as a legal entity
 - Allows any final judgment not to be satisfied or a lien not to be disputed after a legally-imposed, 30-day notice.
 - Makes an assignment for the benefit of creditors
- Fails to follow the sales and use tax certification requirements of s. 77.66 of the Wisconsin Statutes;
- Incurs a delinquent Wisconsin tax liability;
- Fails to submit a non-discrimination or affirmative action plan as required here in.
- Fails to follow the non-discrimination or affirmative action requirements of such¹: II, Chapter 111 of the Wisconsin Statutes (Wisconsin's Fair Employment Law);
- Becomes a federally debarred Contractor;
- Is excluded from federal procurement and non-procurement Contracts;
- Fails to maintain and keep in force all required insurance, permits and licenses as provided in this Contract
- Fails to maintain the confidentiality of the State's information that is considered to be Confidential Information, proprietary, or containing Personally Identifiable Information, or
- Contractor performance threatens the health or safety of a State employee or State customer.

STANDARD TERMS & CONDITIONS, DOA-3054 (R10/2005)

- 1.0 SPECIFICATIONS:** The specifications in this request are the minimum acceptable. When specific manufacturer and model numbers are used, they are to establish a design, type of construction, quality, functional capability and/or performance level desired. When alternates are bid/proposed, they must be identified by manufacturer, stock number, and such other information necessary to establish equivalency. The State of Wisconsin shall be the sole judge of equivalency. Bidders/proposers are cautioned to avoid bidding alternates to the specifications which may result in rejection of their bid/proposal.
- 2.0 DEVIATIONS AND EXCEPTIONS:** Deviations and exceptions from original text, terms, conditions, or specifications shall be described fully, on the bidder's/proposer's letterhead, signed, and attached to the request. In the absence of such statement, the bid/proposal shall be accepted as in strict compliance with all terms, conditions, and specifications and the bidders/proposers shall be held liable.
- 3.0 QUALITY:** Unless otherwise indicated in the request, all material shall be first quality. Items which are used, demonstrators, obsolete, seconds, or which have been discontinued are unacceptable without prior written approval by the State of Wisconsin.
- 4.0 QUANTITIES:** The quantities shown on this request are based on estimated needs. The state reserves the right to increase or decrease quantities to meet actual needs.
- 5.0 DELIVERY:** Deliveries shall be F.O.B. destination freight prepaid and included unless otherwise specified.
- 6.0 PRICING AND DISCOUNT:** The State of Wisconsin qualifies for governmental discounts and its educational institutions also qualify for educational discounts. Unit prices shall reflect these discounts.
- 6.1** Unit prices shown on the bid/proposal or contract shall be the price per unit of sale (e.g., gal., cs., doz., ea.) as stated on the request or contract. For any given item, the quantity multiplied by the unit price shall establish the extended price, the unit price shall govern in the bid/proposal evaluation and contract administration.
- 6.2** Prices established in continuing agreements and term contracts may be lowered due to general market conditions, but prices shall not be subject to increase for ninety (90) calendar days from the date of award. Any increase proposed shall be submitted to the contracting agency thirty (30) calendar days before the proposed effective date of the price increase, and shall be limited to fully documented cost increases to the contractor which are demonstrated to be industry wide. The conditions under which price increases may be granted shall be expressed in bid/proposal documents and contracts or agreements.
- 6.3** In determination of award, discounts for early payment will only be considered when all other conditions are equal and when payment terms allow at least fifteen (15) days, providing the discount terms are deemed favorable. All payment terms must allow the option of net thirty (30).
- 7.0 UNFAIR SALES ACT:** Prices quoted to the State of Wisconsin are not governed by the Unfair Sales Act.
- 8.0 ACCEPTANCE-REJECTION:** The State of Wisconsin reserves the right to accept or reject any or all bids/proposals, to waive any technicality in any bid/proposal submitted, and to accept any part of a bid/proposal as deemed to be in the best interests of the State of Wisconsin.
- Bids/proposals MUST be date and time stamped by the soliciting procurement office on or before the date and time that the bid/proposal is due. Bids/proposals date and time stamped in another office will be rejected. Receipt of a bid/proposal by the mail system does not constitute receipt of a bid/proposal by the procurement office.
- 9.0 METHOD OF AWARD:** Award shall be made to the lowest responsible, responsive bidder unless otherwise specified.
- 10.0 ORDERING:** Purchase orders or releases via purchasing cards shall be placed directly to the contractor by an authorized agency. No other purchase orders are authorized.
- 11.0 PAYMENT TERMS AND INVOICING:** The State of Wisconsin normally will pay properly submitted vendor invoices within thirty (30) days of receipt providing goods and/or services have been delivered, installed (if required), and accepted as specified.
- Invoices presented for payment must be submitted in accordance with instructions contained on the purchase order including reference to purchase order number and submittal to the correct address for processing.
- A good faith dispute creates an exception to prompt payment.
- 12.0 TAXES:** The State of Wisconsin and its agencies are exempt from payment of all federal tax and Wisconsin state and local taxes on its purchases except Wisconsin excise taxes as described below.
- The State of Wisconsin, including all its agencies, is required to pay the Wisconsin excise or occupation tax on its purchase of beer, liquor, wine, cigarettes, tobacco products, motor vehicle fuel and general aviation fuel. However, it is exempt from payment of Wisconsin sales or use tax on its purchases. The State of Wisconsin may be subject to other states' taxes on its purchases in that state depending on the laws of that state. Contractors performing construction activities are required to pay state use tax on the cost of materials.
- 13.0 GUARANTEED DELIVERY:** Failure of the contractor to adhere to delivery schedules as specified or to promptly replace rejected materials shall render the contractor liable for all costs in excess of the contract price when alternate procurement is necessary. Excess costs shall include the administrative costs.
- 14.0 ENTIRE AGREEMENT:** These Standard Terms and Conditions shall apply to any contract or order awarded as a result of this request except where special requirements are stated elsewhere in the request; in such cases, the special requirements shall apply. Further, the written contract and/or order with referenced

parts and attachments shall constitute the entire agreement and no other terms and conditions in any document, acceptance, or acknowledgment shall be effective or binding unless expressly agreed to in writing by the contracting authority.

15.0 APPLICABLE LAW AND COMPLIANCE: This contract shall be governed under the laws of the State of Wisconsin. The contractor shall at all times comply with and observe all federal and state laws, local laws, ordinances, and regulations which are in effect during the period of this contract and which in any manner affect the work or its conduct. The State of Wisconsin reserves the right to cancel this contract if the contractor fails to follow the requirements of s. 77.66, Wis. Stats., and related statutes regarding certification for collection of sales and use tax. The State of Wisconsin also reserves the right to cancel this contract with any federally debarred contractor or a contractor that is presently identified on the list of parties excluded from federal procurement and non-procurement contracts.

16.0 ANTITRUST ASSIGNMENT: The contractor and the State of Wisconsin recognize that in actual economic practice, overcharges resulting from antitrust violations are in fact usually borne by the State of Wisconsin (purchaser). Therefore, the contractor hereby assigns to the State of Wisconsin any and all claims for such overcharges as to goods, materials or services purchased in connection with this contract.

17.0 ASSIGNMENT: No right or duty in whole or in part of the contractor under this contract may be assigned or delegated without the prior written consent of the State of Wisconsin.

18.0 WORK CENTER CRITERIA: A work center must be certified under s. 16.752, Wis. Stats., and must ensure that when engaged in the production of materials, supplies or equipment or the performance of contractual services, not less than seventy-five percent (75%) of the total hours of direct labor are performed by severely handicapped individuals.

19.0 NONDISCRIMINATION/AFFIRMATIVE ACTION: In connection with the performance of work under this contract, the contractor agrees not to discriminate against any employee or applicant for employment because of age, race, religion, color, handicap, sex, physical condition, developmental disability as defined in s. 51.01(5), Wis. Stats., sexual orientation as defined in s. 111.32(13m), Wis. Stats., or national origin. This provision shall include, but not be limited to, the following: employment, upgrading, demotion or transfer; recruitment or recruitment advertising; layoff or termination; rates of pay or other forms of compensation; and selection for training, including apprenticeship. Except with respect to sexual orientation, the contractor further agrees to take affirmative action to ensure equal employment opportunities.

19.1 Contracts estimated to be over twenty-five thousand dollars (\$25,000) require the submission of a written affirmative action plan by the contractor. An exemption occurs from this requirement if the contractor has a workforce of less than twenty-five (25) employees. Within fifteen (15) working days after the contract is awarded, the contractor must submit the plan to the contracting state agency for approval. Instructions on preparing the plan and technical assistance regarding this clause are available from the contracting state agency.

19.2 The contractor agrees to post in conspicuous places, available for employees and applicants for employment, a notice to be provided by the contracting state agency that sets forth the provisions of the State of Wisconsin's nondiscrimination law.

19.3 Failure to comply with the conditions of this clause may result in the contractor's becoming declared an "ineligible" contractor, termination of the contract, or withholding of payment.

20.0 PATENT INFRINGEMENT: The contractor selling to the State of Wisconsin the articles described herein guarantees the articles were manufactured or produced in accordance with applicable federal labor laws. Further, that the sale or use of the articles described herein will not infringe any United States patent. The contractor covenants that it will at its own expense defend every suit which shall be brought against the State of Wisconsin (provided that such contractor is promptly notified of such suit, and all papers therein are delivered to it) for any alleged infringement of any patent by reason of the sale or use of such articles, and agrees that it will pay all costs, damages, and profits recoverable in any such suit.

21.0 SAFETY REQUIREMENTS: All materials, equipment, and supplies provided to the State of Wisconsin must comply fully with all safety requirements as set forth by the Wisconsin Administrative Code and all applicable OSHA Standards.

22.0 WARRANTY: Unless otherwise specifically stated by the bidder/proposer, equipment purchased as a result of this request shall be warranted against defects by the bidder/proposer for one (1) year from date of receipt. The equipment manufacturer's standard warranty shall apply as a minimum and must be honored by the contractor.

23.0 INSURANCE RESPONSIBILITY: The contractor performing services for the State of Wisconsin shall:

23.1 Maintain worker's compensation insurance as required by Wisconsin Statutes, for all employees engaged in the work.

23.2 Maintain commercial liability, bodily injury and property damage insurance against any claim(s) which might occur in carrying out this agreement/contract. Minimum coverage shall be one million dollars (\$1,000,000) liability for bodily injury and property damage including products liability and completed operations. Provide motor vehicle insurance for all owned, non-owned and hired vehicles that are used in carrying out this contract. Minimum coverage shall be one million dollars (\$1,000,000) per occurrence combined single limit for automobile liability and property damage.

23.3 The state reserves the right to require higher or lower limits where warranted.

24.0 CANCELLATION: The State of Wisconsin reserves the right to cancel any contract in whole or in part without penalty due to nonappropriation of funds or for failure of the contractor to comply with terms, conditions, and specifications of this contract.

25.0 VENDOR TAX DELINQUENCY: Vendors who have a delinquent Wisconsin tax liability may have their payments offset by the State of Wisconsin.

26.0 PUBLIC RECORDS ACCESS: It is the intention of the state to maintain an open and public process in the solicitation, submission, review, and approval of procurement activities.

Bid/proposal openings are public unless otherwise specified. Records may not be available for public inspection prior to issuance of the notice of intent to award or the award of the contract.

27.0 PROPRIETARY INFORMATION: Any restrictions on the use of data contained within a request, must be clearly stated in the bid/proposal itself. Proprietary information submitted in response to a request will be handled in accordance with applicable State of Wisconsin procurement regulations and the Wisconsin public records law. Proprietary restrictions normally are not accepted. However, when accepted, it is the vendor's responsibility to defend the determination in the event of an appeal or litigation.

27.1 Data contained in a bid/proposal, all documentation provided therein, and innovations developed as a result of the contracted commodities or services cannot be copyrighted or patented. All data, documentation, and innovations become the property of the State of Wisconsin.

27.2 Any material submitted by the vendor in response to this request that the vendor considers confidential and proprietary information and which qualifies as a trade secret, as provided in s. 19.36(5), Wis. Stats., or material which can be kept confidential under the Wisconsin public records law, must be identified on a Designation of Confidential and Proprietary Information form (DOA-3027). Bidders/proposers may request the form if it is not part of the Request for Bid/Request for Proposal package. Bid/proposal prices cannot be held confidential.

28.0 DISCLOSURE: If a state public official (s. 19.42, Wis. Stats.), a member of a state public official's immediate family, or any organization in which a state public official or a member of the official's immediate family owns or controls a ten percent (10%) interest, is a party to this agreement, and if this agreement involves payment of more than three thousand dollars (\$3,000) within a twelve (12) month period, this contract is voidable by the state unless appropriate disclosure is made according to s. 19.45(6), Wis. Stats., before signing the contract. Disclosure must be made to the State of Wisconsin Ethics Board, 44 East Mifflin Street, Suite 601, Madison, Wisconsin 53703 (Telephone 608-266-8123).

State classified and former employees and certain University of Wisconsin faculty/staff are subject to separate disclosure requirements, s. 16.417, Wis. Stats.

29.0 RECYCLED MATERIALS: The State of Wisconsin is required to purchase products incorporating recycled materials whenever technically and economically feasible. Bidders are encouraged to bid products with recycled content which meet specifications.

30.0 MATERIAL SAFETY DATA SHEET: If any item(s) on an order(s) resulting from this award(s) is a hazardous chemical, as defined under 29CFR 1910.1200, provide one (1) copy of a Material Safety Data Sheet for each item with the shipped container(s) and one (1) copy with the invoice(s).

31.0 PROMOTIONAL ADVERTISING/NEWS RELEASES: Reference to or use of the State of Wisconsin, any of its departments, agencies or other subunits, or any state official or employee for commercial promotion is prohibited. News releases pertaining to this procurement shall not be made without prior approval of the State of Wisconsin. Release of broadcast e-mails pertaining to this procurement shall not be made without prior written authorization of the contracting agency.

32.0 HOLD HARMLESS: The contractor will indemnify and save harmless the State of Wisconsin and all of its officers, agents and employees from all suits, actions, or claims of any character brought for or on account of any injuries or damages received by any persons or property resulting from the operations of the contractor, or of any of its contractors, in prosecuting work under this agreement.

33.0 FOREIGN CORPORATION: A foreign corporation (any corporation other than a Wisconsin corporation) which becomes a party to this Agreement is required to conform to all the requirements of Chapter 180, Wis. Stats., relating to a foreign corporation and must possess a certificate of authority from the Wisconsin Department of Financial Institutions, unless the corporation is transacting business in interstate commerce or is otherwise exempt from the requirement of obtaining a certificate of authority. Any foreign corporation which desires to apply for a certificate of authority should contact the Department of Financial Institutions, Division of Corporation, P. O. Box 7846, Madison, WI 53707-7846; telephone (608) 261-7577.

34.0 WORK CENTER PROGRAM: The successful bidder/proposer shall agree to implement processes that allow the State agencies, including the University of Wisconsin System, to satisfy the State's obligation to purchase goods and services produced by work centers certified under the State Use Law, s.16.752, Wis. Stat. This shall result in requiring the successful bidder/proposer to include products provided by work centers in its catalog for State agencies and campuses or to block the sale of comparable items to State agencies and campuses.

35.0 FORCE MAJEURE: Neither party shall be in default by reason of any failure in performance of this Agreement in accordance with reasonable control and without fault or negligence on their part. Such causes may include, but are not restricted to, acts of nature or the public enemy, acts of the government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, freight embargoes and unusually severe weather, but in every case the failure to perform such must be beyond the reasonable control and without the fault or negligence of the party.

SUPPLEMENTAL STANDARD TERMS AND CONDITIONS FOR PROCUREMENT OF SERVICES, DOA-3681 (R01/2001)

- 1.0 ACCEPTANCE OF BID/PROPOSAL CONTENT:** The contents of the bid/proposal of the successful contractor will become contractual obligations if procurement action ensues.
- 2.0 CERTIFICATION OF INDEPENDENT PRICE DETERMINATION:** By signing this bid/proposal, the bidder/proposer certifies, and in the case of a joint bid/proposal, each party thereto certifies as to its own organization, that in connection with this procurement:
- 2.1** The prices in this bid/proposal have been arrived at independently, without consultation, communication, or agreement, for the purpose of restricting competition, as to any matter relating to such prices with any other bidder/proposer or with any competitor;
- 2.2** Unless otherwise required by law, the prices which have been quoted in this bid/proposal have not been knowingly disclosed by the bidder/proposer and will not knowingly be disclosed by the bidder/proposer prior to opening in the case of an advertised procurement or prior to award in the case of a negotiated procurement, directly or indirectly to any other bidder/proposer or to any competitor; and
- 2.3** No attempt has been made or will be made by the bidder/proposer to induce any other person or firm to submit or not to submit a bid/proposal for the purpose of restricting competition.
- 2.4** Each person signing this bid/proposal certifies that: He/she is the person in the bidder's/proposer's organization responsible within that organization for the decision as to the prices being offered herein and that he/she has not participated, and will not participate, in any action contrary to 2.1 through 2.3 above; (or)

He/she is not the person in the bidder's/proposer's organization responsible within that organization for the decision as to the prices being offered herein, but that he/she has been authorized in writing to act as agent for the persons responsible for such decisions in certifying that such persons have not participated, and will not participate in any action contrary to 2.1 through 2.3 above, and as their agent does hereby so certify; and he/she has not participated, and will not participate, in any action contrary to 2.1 through 2.3 above.

3.0 DISCLOSURE OF INDEPENDENCE AND RELATIONSHIP:

- 3.1** Prior to award of any contract, a potential contractor shall certify in writing to the procuring agency that no relationship exists between the potential contractor and the procuring or contracting agency that interferes with fair competition or is a conflict of interest, and no relationship exists between the contractor and another person or organization that constitutes a conflict of interest with respect to a state contract. The Department of Administration may waive this provision, in writing, if those activities of the potential contractor will not be adverse to the interests of the state.
- 3.2** Contractors shall agree as part of the contract for services that during performance of the contract, the contractor will neither provide contractual services nor enter into any agreement to provide services to a person or organization that is regulated or funded by the contracting agency or has interests that are adverse to the contracting agency. The Department of Administration may waive this provision, in writing, if those activities of the contractor will not be adverse to the interests of the state.
- 4.0 DUAL EMPLOYMENT:** Section 16.417, Wis. Stats., prohibits an individual who is a State of Wisconsin employee or who is retained as a contractor full-time by a State of Wisconsin agency from being retained as a contractor by the same or another State of Wisconsin agency where the individual receives more than \$12,000 as compensation for the individual's services during the same year. This prohibition does not apply to individuals who have full-time appointments for less than twelve (12) months during any period of time that is not included in the appointment. It does not include corporations or partnerships.
- 5.0 EMPLOYMENT:** The contractor will not engage the services of any person or persons now employed by the State of Wisconsin, including any department, commission or board thereof, to provide services relating to this agreement without the written consent of the employing agency of such person or persons and of the contracting agency.
- 6.0 CONFLICT OF INTEREST:** Private and non-profit corporations are bound by ss. 180.0831, 180.1911(1), and 181.0831 Wis. Stats., regarding conflicts of interests by directors in the conduct of state contracts.
- 7.0 RECORDKEEPING AND RECORD RETENTION:** The contractor shall establish and maintain adequate records of all expenditures incurred under the contract. All records must be kept in accordance with generally accepted accounting procedures. All procedures must be in accordance with federal, state and local ordinances.

The contracting agency shall have the right to audit, review, examine, copy, and transcribe any pertinent records or documents relating to any contract resulting from this bid/proposal held by the contractor. The contractor will retain all documents applicable to the contract for a period of not less than three (3) years after final payment is made.

- 8.0 INDEPENDENT CAPACITY OF CONTRACTOR:** The parties hereto agree that the contractor, its officers, agents, and employees, in the performance of this agreement shall act in the capacity of an independent contractor and not as an officer, employee, or agent of the state. The contractor agrees to take such steps as may be necessary to ensure that each subcontractor of the contractor will be deemed to be an independent contractor and will not be considered or permitted to be an agent, servant, joint venturer, or partner of the state.

ATTACHMENT A – COST SHEET

CONTRACTOR'S NAME University of Wisconsin-Whitewater, Center for Students with Disabilities

PROPOSERS COST PER INDIVIDUAL, PER YEAR (in USD) \$116.38

DVR will pay a \$25.00 as needed per person service fee to cover the added cost of coordination per Section 4, Meeting Plan

Note:

The proposers cost is based upon meeting with each individual an estimated one time per year. If the individual is starting their first year of employment with a 14 (c) employers, it is estimated that two meetings may occur during the first year, and one meeting per year thereafter.

The proposer's cost is to include all costs associated with meeting with each individual. This can include but is not limited to the following: mileage, meals, refreshments, lodging and any other auxiliary costs.

If a consumer requires an accommodation such as translation services, the DVR agrees to cover all costs related to service. The contractor shall notify DVR of the need and DVR will make arrangements for the accommodation and service will be billed directly to DVR. Any costs due to cancellation by the contractor will be borne by the contractor and DVR will reduce the next payment to the contractor accordingly.

Budget Detail for University of Wisconsin-Whitewater Proposal in Response to ILF0004

Interviews	weeks	Mtgs/wk	Mtgs per person	# of Staff	48 weeks to accommodate vacation/holidays/staff meetings
8,200	48	170.83	21	9.00	90 minutes face to face/scheduling time x 21 people = 31.5 Hours
					Documentation/Communication 40 minutes x 5 days = 3.5 hours
					Travel Time 60 minutes per day x 5 days = 5 hours
					TOTAL 40 hours per week

Staff	FTE	Annual Wage	TOTAL Wages
Project Manager II	1.0	\$ 68,000	\$ 68,000
Interviewers, Assistant Outreach Specialist	8.0	\$ 45,000	\$ 360,000
PI Management	0.25	\$ 80,392	\$ 20,098
Outreach support	1.0	\$ 38,000	\$ 38,000
Grad Assistant	0.5	\$ 20,600	\$ 10,300
Student Help		\$ 9,973	\$ 9,973
Subtotal Personnel			\$ 506,371

Fringe Benefits	Rate	
Academic	31.10%	\$ 139,358
Outreach support	31.10%	\$ 11,818
Grad Asst	26.63%	\$ 2,743
Student	4.55%	\$ 454
Subtotal Fringe Benefits		\$ 154,373

Travel	129,600	0.51	\$ 66,096	(300 ml per wk x 9 people x 48 wks x \$.54 per mile)
Overnight	480	\$ 82	\$ 39,360	(1 overnight stay per 9 people x 48 wks x \$82 per night)
Meals	480	\$ 38	\$ 18,240	(1 per dlem per week per 9 people x 48 wks)
Administrative Travel			\$ 2,000	
Subtotal Travel**			\$ 125,696	

Computers*	\$ 1,100		\$ 11,000	(\$1,000 per computer x 10)
Cellphones*	\$ 500		\$ 4,500	(\$500 per phone x 9)
Internet	\$ 50		\$ 5,400	(\$50 per month x 9 x 12 months)
Supplies	\$ 22,500		\$ 22,500	postage, mailings, office supplies
Subtotal Supplies			\$ 43,400	

Indirect Costs-Direct Total	15%		\$ 124,476
TOTAL			\$ 954,316

* One Time Costs

** Travel rates reflect state allowed reimbursement rates